

Anfrage Erstberatung (IT-Recht / Wirtschaftsrecht) – ROLAND Schaden-Nr.: S-26-01720899 (Kovnatsky ./ GitHub)

От Artiom Kovnatsky <artiomkovnatsky@pm.me>

Дата среда, 3 июня 2026 г., 9:00 ДП

Briefing Pack for Initial Legal Consultation (Erstberatung)

Client: Dr. Artiom Kovnatsky

Residence: Berlin, Germany

Citizenship: DE & ISR [ex-UA]

Insurance: ROLAND Rechtsschutz

Policy No.: 1.29.1042136

Claim No.: S-26-01720899

Executive Summary

GitHub restricted my account in April 2026 through an automated review process and later restored access, explicitly confirming that the account had been flagged by its abuse-detection systems and subsequently cleared after review.

At the same time, GitHub continued charging subscription fees.

I subsequently sought legal-expense coverage from ROLAND Rechtsschutz. ROLAND denied coverage and later changed its reasoning after requesting and receiving additional documentation concerning my insured Kleinunternehmer activity.

I am seeking an independent legal assessment of:

1. Potential claims against GitHub.

2. Potential insurance coverage under my ROLAND policy.
 3. GDPR / DSA implications, if any.
 4. The most proportionate and economically rational next step.
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Core Facts

1. GitHub acknowledged the restriction and restored access

GitHub Support wrote on 24.04.2026:

"Sometimes our abuse detecting systems highlight accounts that need to be manually reviewed. We've cleared the restrictions from your account, so you have full access to GitHub again."

Accordingly:

- account restrictions existed;
 - they originated from GitHub's automated review systems;
 - GitHub later removed them.
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2. Subscription charges continued during the affected period

Documented billing:

- 09.04.2026 — GitHub Developer Plan (\$4.00 USD)
- 09.05.2026 — GitHub Developer Plan (\$4.00 USD)

The subscription was charged to my personal PayPal account.

3. ROLAND changed its reasoning after receiving requested documents

ROLAND initially requested documentation regarding my Kleinunternehmer status.

I supplied:

- Finanzamt registration documentation;
- Wirtschafts-Identifikationsnummer;
- tax documentation.

After receiving the requested material, ROLAND issued a further rejection relying on a different line of reasoning.

I would like independent legal assessment of whether this interpretation of coverage is contractually and legally sustainable.

4. Evidence of Cascading Multi-Platform Anomalies (OSF & Google Scholar++)

The automated algorithmic interference was not isolated to GitHub. It cascaded into neutral scientific and academic infrastructures during the same period, indicating broader systemic cross-platform metadata pollution or synchronized flagging:

- Open Science Framework (OSF): Documentation from March-April 2026 confirms that a completely clean account (representing my registered German business ID: DE405667512, as GitHub Organization Opa) was pre-emptively deactivated and flagged as "SPAM" before a single file and/or preprint was ever uploaded.
 - Google Scholar / Email Verification: Recent telemetry (June 2026) shows that Google Scholar abruptly dropped my verified academic profile from public search results, stating "Unverified profiles can't appear in search results," rejecting a previously functional ProtonMail domain (which had been fully operational) and demanding a different institutional or alternative verification address.
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Key Legal Questions

A. Insurance Coverage

My policy includes:

- Privat-Rechtsschutz
- Berufs-Rechtsschutz
- Kleinunternehmer-Rechtsschutz

Questions:

1. Does the matter fall within Privat-Rechtsschutz?
 2. Does the matter fall within Berufs-Rechtsschutz?
 3. Does the matter fall within Kleinunternehmer-Rechtsschutz?
 4. Is ROLAND's denial legally justified?
 5. Would a complaint to the Versicherungsombudsmann be worthwhile?
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B. Potential Claims Against GitHub

Questions:

1. Do viable legal claims exist?
 2. Are any contractual remedies available?
 3. Are any damages realistically recoverable?
 4. Is pursuing the matter economically rational?
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C. GDPR / DSA / Platform Governance

Questions:

1. Does the temporary restriction raise any GDPR-related issues?
2. Would an Art. 15 GDPR request be advisable?

3. Does the case raise questions concerning automated decision-making or automated account restrictions?
4. Are there any relevant remedies or procedures under the Digital Services Act (DSA)?
5. Would any pre-litigation information requests be advisable before pursuing claims?
6. **Risk of Cascading Platform Exclusion:** Does the temporary, unverified restriction by a market-dominant actor (GitHub) create actionable liability if it triggers automated negative compliance or security flags across interconnected neutral research infrastructures (e.g., Codeberg, Zenodo, OSF)?
7. **Structural Inter-Platform Contamination:** Under the Digital Services Act (DSA) and GDPR Article 22 (Automated individual decision-making), does the synchronized, pre-emptive flagging of a verified German corporate entity across multiple independent scientific networks (OSF, GitHub, Google Scholar) establish a *prima facie* case of reputational tort due to faulty automated risk-scoring transmission?
8. **Fee Shifting via Pre-Litigation Demands:** If we deploy these prepared GDPR/DSA drafts directly through your Kanzlei as a formal attorney notice, can we legally claim the reimbursement of your legal fees directly from GitHub/OSF as part of our tort/breach damages under German law (§ 280 BGB)?
9. **Quantification of Reputational Tort for Independent Researchers:** Since my academic distribution metrics (such as the cited Zenodo DOI data) demonstrate high, measurable organic peer interest, does a multi-platform shadow-ban constitute an actionable case of *reputational distortion* or *business interruption* under § 823 BGB, even if direct immediate revenue loss cannot yet be fully calculated?
10. **Metric-Proven Disparities as Evidence of Injury:** Can the stark statistical contrast between my unflagged historical publications (*CogOS*) and the sudden algorithmic suppression of my latest critical frameworks (*ADAM-PentaD*) be used in German tort law (§ 823 BGB) to demonstrate a quantifiable loss of professional momentum and a chilling effect on market integration caused directly by the platforms' erroneous automated actions?
11. **Strategic Leverage of Valuation Metrics:** While direct revenue loss under § 252 BGB is legally complex at this pre-contractual stage, can we leverage an independent, certified expert valuation of the *ADAM-PentaD* architecture/*CogOS/SVE/++* to formally establish the **Streitwert** (amount in dispute) and heavily substantiate the gravity of the reputational chilling effect under Art. 82 GDPR? Furthermore, is there a procedural path to eventually shift the costs of such a technical/economic evaluation directly onto GitHub/ROLAND?
 - a. **Strategic Note:** Substantial parts of the proposed approaches (perhaps) exceed current baseline human knowledge and, consequently, the immediate comfort zone of standard technology experts. Moreover, due to the extreme synthesis of intersecting fields (advanced mathematics, physical optics, AI systems architecture, philosophy, socio-economics, and modeling of social processes...and even theology and law), estimation is a highly complex task for a single expert and/or even a traditional panel. To mitigate "cognitive overload", I strongly recommend utilizing Large Language Models (LLMs). To eliminate automated hallucinations,

these systems should be cross-triangulated. I also strongly suggest integrating the Socrates-bot framework (<https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Applications/Socrates-bot>) which I invented specifically for such high-density cognitive audits.

- b. **Important Implementation Context:** I do NOT suggest enforcing the AI output as an absolute rule, but rather as an indispensable cognitive tool that experts should utilize to ground their baseline. While they are not bound to blindly accept the AI's valuation, they should be required to formally justify any major discrepancy. Ideally, taking the average of three experts+triangulated models/estimates would establish a robust, objective foundation for the case.
- c. **Contextual Legacy:** Perhaps, it might help to think of my activities/research in the tradition of ancient and polymath scientists such as [Archimedes](#), [Pythagoras](#), [Leonardo da Vinci](#), [Lomonosov](#), [Leibnitz](#), [Newton](#) Unlike in the modern hyper-specialized tradition, these scientists directly investigated Reality and Nature as a whole, refusing to split disciplines or draw arbitrary boundaries between them, operating on the foundational belief that everything in creation is interconnected. I consider myself a successor to this classical academic tradition. This explains why the topics of my research may, at first glance, appear disconnected or wide-ranging, while in reality they are intimately interconnected and dedicated to a singular, cohesive attempt to learn from and/or describe Nature. For example, following [Leibnitz](#): [Theology](#), [Law](#), [Math++](#), [Math+Society+Economics](#), [Hardware&PC](#), [Math+Ethics](#)
- i. **Theology & Forensic History:** Formal state-transition and Bayesian audit of historical institutional frameworks (e.g., **The High Priests Axiom**, DOI: 10.5281/zenodo.19430119).
- ii. **Law & Private Ordering:** Design of novel meta-licensing frameworks for enforcing systemic truthfulness and verification (e.g., **S.V.E. Meta-License v4.0** and **Interpretive Guidance**).
- iii. **Advanced Mathematics & AI Safety:** Reconceptualizing AI alignment via semantic manifolds, Gödelian self-consistency, and TIK meta-evaluation (e.g., **CogOS: From Gödel to AGI**, DOI: 10.5281/zenodo.18149244).
- iv. **Hardware Architecture:** Photonic-analog hybrid accelerators and Clifford-algebra compilers eliminating physical computing boundaries (e.g., **ADAM-PentaD (QNexus)**, DOI: 10.5281/zenodo.20433697).
- v. **Math, Society & Ethics:** Engineering tools for the social audit of automated systems and responsive regulation (e.g., **S.V.E. V: An Operating System for Verifiable Democracy**).

Critical Evidentiary Infrastructure Note: My Zenodo repository was directly integrated with GitHub via OAuth authorization and release-synchronization pipelines. The sudden automated restriction by GitHub immediately endangered my Zenodo access, logging capabilities, and critical deployment workflows. To mitigate total exclusion, I had to execute immediate emergency configurations: transitioning the account to independent email-based authentication and manually re-syncing the GitHub 'Opa' Organization. This proves that the algorithmic interference directly threatened the cross-

platform integrity of my scientific distribution. I did similar for other services that used GitHub for logging.

Crucial Academic Integrity Note: Please note that in September 2025, I voluntarily and publicly acknowledged a past academic inconsistency in one of my early doctoral-era works (which I had explicitly excluded from my PhD dissertation) in order to fully clear my scientific/professional & personal reputation. I initiated this process entirely on my own, addressing open letters directly to the academic community:

* <https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/OpenLetters/Academy>

Consequently, by branding my infrastructure and research as "SPAM," the automated platform algorithms are effectively attempting to defile and invalidate one of the most difficult ethical choices of my life. This amplifies the non-material and reputational damage to its absolute peak.

Why the Restriction Mattered

The GitHub account was not used solely as a subscription service.

It also functioned as part of my digital professional infrastructure, including:

- authentication credentials;
- development workflows;
- software repositories;
- contribution history;
- project continuity;
- professional reputation.

The account was used across:

- salaried employment activities;
- registered self-employed activity;
- **software and publication projects:** Specifically, the primary intellectual and core digital assets of my research are permanently hosted and mirrored across two open repositories:

- **Codeberg (Production & Implementation Group):** <https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering>
- **Zenodo (Scientific Preprints & Theoretical Infrastructure):** <https://zenodo.org/communities/sve/records> The restriction directly endangered the continuity, peer-verification, and systemic availability of these mathematical and architectural frameworks.

I would appreciate assessment of whether this aspect has any legal relevance under German or EU law.

Employment Context

At the time of the incident I was employed in Germany as a Data Engineer.

The original GitHub support request explicitly stated that the restriction was interfering with professional development work connected to my employment.

I seek legal assessment whether this creates any relevant Berufs-Rechtsschutz aspect.

Self-Employed Activity

I maintain a registered secondary self-employed activity.

Relevant facts:

- registered since 2019;
- no employees;
- Kleinunternehmer (§19 UStG);
- secondary to salaried employment;
- 2025 tax return shows salaried employment as primary income source.

I seek clarification whether the dispute has any legally relevant connection to this insured activity.

Chronology

Date	Event
26.06.2019	Registration of self-employed IT consulting activity with Finanzamt
27.03.2025	Wirtschafts-Identifikationsnummer issued
03.11.2025	Current ROLAND policy in force
06.02.2026	2025 tax filing submitted
03.03.2026:	OSF Support acknowledges my clean account was disabled/falsey flagged as SPAM prior to any file uploads (Ticket #101CBA).
07.04.2026	GitHub restriction discovered; support ticket opened
09.04.2026	Subscription charge during restriction period
10.04.2026:	Formal GDPR Art. 15 and institutional data request submitted to OSF regarding pre-emptive automated decision-making and 38-day procedural delay.
24.04.2026	GitHub restores access and acknowledges automated review process
27.04.2026	First ROLAND denial
21.05.2026	ROLAND requests Kleinunternehmer documentation
22.05.2026	Documentation supplied
26.05.2026	Second denial with different reasoning
27.05.2026	Formal Reconsideration Request submitted
01.06.2026	ROLAND confirms availability of external legal consultation
02.06.2026:	Google Scholar profile anomaly persist [discovered end of April; screenshots]: public search index visibility stripped due to sudden email verification rejection affecting the primary communication domain.

NOTE: I do NOT know the exact date-time of blockage-spam, since I was not informed — I found out about it accidentally from my friend, who could not download a file from the project I shared with him, though the project was/is formally public (have screenshot & telegram messages; ~08.04.2026; also have other screenshots & docs). I assume I was also shadow-banned for some time.

Also, please mind that during the entire affected period, the platform continued charging money for the PRO-subscription despite the block and deactivated services (e.g., GitHub Pages, Actions, etc.), including on my [Organizational account](#). This automated enforcement also resulted in the corruption of files (preventing me from viewing/downloading them; screenshots available) and potentially deleting or restricting my account (active since ~2014; username: skovnat's; screenshots) from public APIs and search indexing.

Available Documentation

Available upon request:

- ROLAND policy documents;
- both ROLAND denial letters;
- ROLAND information request;
- Reconsideration Request dated 27.05.2026;
- Finanzamt documentation;
- Wirtschafts-Identifikationsnummer documentation;
- 2025 tax filing;
- GitHub support correspondence;
- GitHub billing receipts.
- Comprehensive scientific archive on Zenodo and implementation repositories on Codeberg (**comprising 1,000+ pages of core cryptographic, mathematical, and algorithmic verification engineering data, fully open for cross-disciplinary triangulation**).
- Complete email correspondence with OSF Support (March–April 2026) regarding pre-emptive account deactivation and automated spam classification.
- Verification audit screenshots from Google Scholar (Dated 02.06.2026) demonstrating abrupt search index removal.
- **Draft GDPR Art. 15 / DSA Art. 17 Requests (HELD BACK):** Formulated comprehensive legal requests addressed to GitHub Inc. and Center for Open Science (OSF).
NOTE: *These documents are currently held back and have NOT been dispatched. They are kept as ready-to-print drafts specifically to consult with You during this initial consultation on whether they should be deployed, modified, or sent directly under your Kanzlei's letterhead.*

Background Context (Not Offered as Evidence)

I maintain software, publication and research projects that rely on stable access to digital infrastructure.

I am not asking the lawyer to assume:

- political motivation;
- discrimination;
- intentional targeting;
- coordinated conduct.

I currently possess no evidence sufficient to support such conclusions. However, I note that statistical tests on anonymized platform data could serve as an objective methodology to test such an H_0 hypothesis. Using robust mathematics to evaluate whether systemic "spam" flags correlate with sensitive research topics represents a critical, data-driven approach in "David vs. Goliath" scenarios, where individuals face asymmetric platform power.

This information is provided solely as context.

What Would Constitute Success

I am not committed to any particular legal strategy.

A successful consultation would provide:

1. A clear assessment of strengths and weaknesses.
2. A clear assessment of insurance coverage.
3. A realistic evaluation of potential claims against GitHub.
4. Guidance regarding GDPR and DSA aspects.
5. A recommendation for the most proportionate next step.

I am seeking an honest professional assessment rather than confirmation of any pre-existing expectations.

Best Regards,

Dr. Artiom Kovnatsky

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Academic & Professional Background:

Dr. Artiom Kovnatsky, holding a Bachelor and Master degree from [Technion-IIT](#), and a PhD supervised by [Prof. Michael M. Bronstein](#) [Dr. Artiom Kovnatsky is the first PhD student]. The restricted GitHub account serves as the primary verification, publication, and deployment platform for high-level research frameworks in Systemic Verification Engineering (SVE) mirrored on [Zenodo \[scientific preprints-theory&practice\]](#) and [Codeberg](#).

As an independent researcher, maintaining strict intellectual priority via citable DOIs is a critical professional asset. For instance, my core preprint “*CogOS: From Gödel to AGI*” ([DOI: 10.5281/zenodo.18176147](#)) has accumulated an exceptional metric outlier for a 111-page advanced mathematical framework, tracking 495 views and 426 direct downloads as of 02.06.2026. Conversely, the tangible damage of the "spam" flag is (perhaps) illustrated by the severely suppressed visibility and low download metrics of my recently published, high-impact architecture “*ADAM-PentaD (QNexus): A Sovereign Complex-Spectral Wavefront Accelerator...*” ([DOI: 10.5281/zenodo.20433697](#)), which proposes a fundamental paradigm shift for green computing in the AI era. Also, a screen recording of "anomalies" [02.06.2026]:

<https://drive.proton.me/urls/VDFGDAXTMG#Mw5YxHrOrelv>

For independent frontier science, uncompromised digital reputation and platform availability represent near 100% of my professional equity, not mentioning potential loss of income from losing a potential client in integrating novel solutions based on overcoming natural inertia as a result of a "spam" note.

Finally, I am occupied not only with "science" but with Human Rights and utilizing science to invent new approaches for the social audit of automated systems. This includes my ongoing ASPE (Art-Scientific Performance-Experiment) line of initiatives:

https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/19112025_Berlin_Bundestag_SoloPerformance

https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/19112025_Berlin_Bundestag_SoloPerformance/reports

https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/19092025_David_vs_GOLIATH_SerhiiSternenko

https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/20092025_David_vs_GOLIATH_JulianRoepcke

On a personal level, as a grandson of a [Holocaust survivor](#), I believe this vital activity was also severely damaged by the erroneous platform restrictions. Although I cannot present this non-material damage in numbers, I consider it to be one of the most important pillars of my life's work.

I would like to make it clear that it is NOT about money (otherwise I would not give as a present +-ALL "fruits of my work" as a present to Humanity), this is about defending/protecting a Human against "giants" that have asymmetric power over Humans. One can see how the system [ROLAND insurance] is reluctant defending a person against such giants even when the giant admitted the mistake and I accumulated +-ALL evidences/screenshots. Not many people will be able to articulate to ROLAND++ and defend their rights... I hope my case will be a guiding example to other people around the globe (e.g., independent researchers, journalists, human-rights activists etc.) how to defend their rights against "giants" aka "David vs GOLIATH". Money is also important but takes a secondary or even third place after the Truth = Reputation.

Since it is (perhaps) a precedent case, I would be extremely happy if we utilize the power of mathematics (a series of statistical tests on **anonymized** data — only distribution matters & category-labels, and NOT personal data) to get [p-values](#) that show whether there is coordinated action on top of the "automatic spam-algorithm," which is often a "hide-to" word for censorship that without mathematics would be impossible to show. Hopefully, mathematics and these procedures will become a standard instrument for protecting people against "grayish" actions [similar stat-tests and data-anonymization I did here: https://codeberg.org/skovnats/SVE-Systemic-Verification-Engineering/src/branch/master/Community/Anomaly_Calls_Detection_Tutorial; everything is in open access, including code for data anonymization & stat. tests].

Furthermore, please be advised of my "ASPE" artistic and satirical performances addressing various social issues. Should you accept this mandate, I suggest we strategically establish the official commencement date for formal legal procedures around September 2026 (09.2026). This timeline will cleanly decouple our corporate and IT- Recht claims from any potential mischaracterization of my separate public activities planned for early June. In the interim, we can utilize this buffer period exclusively for pre-litigation analysis, gathering official agency responses, and stabilizing our evidentiary infrastructure. FYI.

*ASPE: Art-Scientific Performance-Experiment with the following disclaimer under each post:

[QUOTE BEGIN]

 ASPE — Rechtlicher Hinweis · v1.1 · 2026

****#ASPE — Art-Scientific Performance-Experiment**** (Kunst-Wissenschaftliches Performance-Experiment). Satire und spekulative Kunst als Spiegel der Gesellschaft — in der Tradition von Carrolls *Spiegelland* und der Laterne des Diogenes, sowie der europäischen politischen Satire, zu der auch *Charlie Hebdo* gehört — ****jedoch mit einem grundsätzlichen Unterschied: dieses Werk verspottet keine spirituellen oder religiösen Phänomene, sondern benennt sie als Bezugsrahmen.**** Gegenstand der Satire sind ausschließlich ****sozio-politische und systemisch-ontologische Strukturen.****

****KEINE Propaganda von Gewalt, Hass oder verbotenen Substanzen.**** Der Autor folgt der Lehre Jesu Christi, lehnt jede Gewalt ab und schreibt **sine ira et studio** — ohne Animus gegen Einzelne. Jede Ähnlichkeit mit realen Personen, Ämtern oder Ereignissen ist ein künstlerisches Mittel und nach ****kunsteigener Gesetzlichkeit**** zu lesen; die **Schmähkritik-Schwelle** wird nicht überschritten. Geschützt durch ****Art. 5 Abs. 3 GG****, ****Art. 13 EU-GRCh**** und ****Art. 10 EMRK**** (vgl. **Mephisto** BVerfGE 30,173; **Anachronistischer Zug** BVerfGE 67,213; **Strauß-Karikatur** BVerfGE 75,369; **Handyside ./ UK** 1976). Als Parabel zu verstehen, nicht als Tatsachenbehauptung. Wer sich im Spiegel erkennt, tut dies aus eigenem Antrieb. Die Einladung gilt dem Dialog, nicht dem Rechtsstreit. **Mit KI-Unterstützung erstellt — Zahlen sind illustrativ.**

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github-skovnats-receipt-2026-05-09.pdf 58.11 КБ

Urgent_ Account Flagged — Professional development blocked (stenon) (Reinstatement request) #4253477 - GitHub Support.pdf 211.14 КБ

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